THABISO NDLOVU

Versus

LEONARD NDLOVU

IN THE HIGH COURT OF ZIMBABWE
MOYO J
BULAWAYO 8 OCTOBER 2024 AND 20 NOVEMBER 2025

Civil trial – Tacit Universal Partnership

S. Nkomo, for the plaintiff
T. Masiye-Moyo, for the defendant

MOYO J: - Plaintiff's claim is for the following relief:-

a) An order dissolving the customary law union/tacit universal partnership between the parties.

b) An order for the sharing of assets acquired during the subsistence of the union/partnership.

c) An order confirming custody of the parties' minor children.

d) An order for the maintenance of the parties' children.

e) Ancillary relief.

f) Costs of suit.

In the declaration plaintiff averred that:-

During the period 2001 to 2020, the parties agreed and commenced to live as husband and wife. Plaintiff also avers that due to the non registration of the customary law union, the parties were ultimately engaged in a tacit universal partnership in terms of which:-

a) They lived together as husband and wife.

b) They created a family and had children.

c) They established and ran businesses for their benefit and their family.

d) They acquired assets together, jointly and individually.

Plaintiff avers that the parties then acquired the following assets:-

1. 69 Duncan Road Bulawayo a.k.a. Stand 29 Bulawayo South, Suburban stands of Stand 374 Bulawayo Township.
2. 4 Rudd Road, Northend Bulawayo, a.k.a 1867 Bulawayo North A of Bulawayo Township lands in the district of Bulawayo.
3. Lion West Mine
4. Slope 2 Mine
5. Filabusi Stand with warehouse
6. Stand 520 Habane Esigodini
7. Mining equipment
8. 14 Motor vehicles
9. Household goods

Behind this background plaintiff claims for herself, upon the dissolution of the customary law union/tacit universal partnership the following:-

1. No. 69 Duncan Road Suburbs.
2. Lion West Mine including 5 stamp mills.
3. Half the value of Stand 520 Habane Township, Esigodini.
4. 5 motor vehicles including a tractor and a Toyota Fortuner. However because it came out during the trial that the Toyota Fortuner had been sold, resulting in plaintiff demanding her claim to the vehicle to an alternative sounding in money.
5. 1 x excavator a Hyundai Ronder Bulke RB 862.
6. Household goods at 69 Duncan Road Suburbs

I will not allude to the assets plaintiff claims should be awarded to the defendant as I hold the view that it is what she claims out of the union/partnership that is in issue.

Defendant's Plea

In his plea the defendant avers that indeed the parties were in a customary law union which was potentially polygamous and that he later married 2 other women with whom he sired children.

He disputed the existence of a tacit universal partnership between the parties. He averred that the agreement to live together as husband and wife which relationship was governed by customary rites, was never intended to be a tacit universal partnership.

He averred that the parties had separate businesses that they individually ran and that defendant ran 2 mining operations, at Lion West and Slope 2 Mines, where plaintiff was employed as a gold buying agent. That plaintiff ran her own business known as Gold Reef Sports Bar in Mawabeni. That as for the 50% share in the Suburbs property, he donated it to the plaintiff. That all the properties were acquired by him and they are his except where he expressly donated same to plaintiff.

On the issue of custody he avers that there is a court order by the Juvenile Court already. On the issue of maintenance, he avers that he is ably providing for the minor children and that there is no need for another order. He disputed the existence of some mining equipment and some motor vehicles. He also averred that some mining equipment is owned by third parties.

Issues for Trial

The first issue for determination is whether or not the parties were in an unregistered customary law union/tacit universal partnership or civil partnership.

I hold the view that it is common cause from the pleadings that the parties were in a customary law union. There is no issue there. Again, the pleadings do not put in issue the existence of a civil partnership or otherwise. Even in the evidence led in court I did not hear the plaintiff claim the existence of a civil partnership. The only issue that is before me in that respect is whether or not there was a tacit universal partnership between the parties? If there was, the matter then takes the trajectory of the dissolution of a tacit universal partnership, if not then the matter devolves per the law regarding the dissolution of customary law unions.

Was There A Tacit Universal Partnership Between The Parties

Plaintiff told the court that she got married customarily to the defendant, they stayed together, she cooked and washed for him. Defendant was employed and they intended to create a family. They had 4 children together and in 2003 defendant left formal employment and went into self employment. It is at that point that they started working together. They turned a house that they rented into an office. She would serve customers and defendant looked for customers and money. They ran a successful business whose profits gave birth to more businesses and assets. They worked together as husband and wife in mining businesses and buying various assets.

The defendant in his evidence in court disputed the existence of a tacit universal partnership. He stated that they lived together as husband and wife but he worked, sometimes with other partners to fend for the family. That his businesses would sometimes employ the plaintiff and that he donated 50% of the Suburbs property to the plaintiff. That he also had 2 other wives since a customary law union is potentially polygamous. He said plaintiff was a house wife and did not know anything about the acquired assets.

What Constitutes a Tacit Universal Partnership

What constitutes a tacit universal partnership in the Zimbabwean context is aptly described in the case of *Nhende* v *Zigora* SC 68-25 a Supreme Court decision.

One of the issues for determination by the Supreme Court in that appeal was whether or not there was a tacit universal partnership between the appellant and the respondent. The Supreme Court held that:-

> "16. The general principle emanating from the cited cases, is that, where parties pull their resources for their common good, even if they are not involved in a commercial venture for profit, they are in a universal partnership for the purposes of their livelihood and maintenance for their common household. The partnership being tacit, has no defined expected contribution from either party. The contributions whether direct or indirect are taken into consideration for distribution and apportionment."

The Supreme Court also quoted with approval the case of *Marange* v *Chiroodza* 2002 (2) ZLR 171 (H) at 181 (D-F) where the court made the following remarks on what constitutes a tacit universal partnership.

> "The arguments in support of the view that an unregistered customary law union establishes a tacit universal partnership are similar to arguments advanced by jurists

> who favour holding that there is universal community of property between married persons. Marriage itself is a union for life in common of a man and a woman. The legal rights and obligations created by marriage include community of life and the maintenance of one common household. The common estate may be built by the industry of the husband and the thrift of the wife, but it belongs to them jointly as one could not have succeeded without the other. As VAN DER HEEVER J put it in *Edelstein* v *Edelstein N.O and Ors,* the husband could not have successfully concluded his trade if his wife had not cooked the dinner and minded the children. It is on this basis that there existed a tacit universal partnership between the plaintiff and the defendant in the above matter."

From the expressions in the Nhende case (supra) clearly the Supreme Court has found that a customary law union where parties come together, live together as husband and wife, share experiences, and each work in different ways for the common interest of their livelihood and household are in a tacit universal partnership.

Turning to the facts before me, that is precisely what the parties before me did. They met in 2002, lived together as husband and wife until 2020 when their relationship fell apart.

Even defendant accepts that there existed a customary law union between them. He simply then brings in the aspect of contributions towards the acquisition of assets and business entities to show that there was no tacit universal partnership and that therefore plaintiff's claims should be dismissed. However, using the Nhende case (supra) as a compass in finding whether there is a tacit universal partnership, clearly there is one. Because, there was a customary law union, there was a commitment to live together as husband and wife, there was living together and working together albeit in different ways in order to achieve the common good and establishment of their household. I accordingly find that a tacit universal partnership did exist from the circumstances of the parties as given to the court by both parties and as guided on the law by the principles and findings in the Nhende case (supra).

Having found that a tacit universal partnership existed between the parties I then move to the next issue.

2. Whether or not the plaintiff is entitled to the property that she is claiming upon the dissolution of the union or partnership.

In the Nhende case (supra) the Supreme Court held that where a tacit universal partnership was found to exist between parties in a customary law union, the reliance on section 7 of the Matrimonial Causes Act as a useful guidance in considering the division of property, cannot be said to be unreasonable or unlawful as the parties although in an unregistered

customary law union, were for all intents and purposes living as husband and wife (at para 23 of the cyclostyled judgment).

The Supreme Court quoted with approval the words in the case of *Chapeyama* v *Matende & Anor* 2000 (2) ZLR 356 (S) where that court stated thus:-

> "… A general law concept such as a tacit universal partnership may be relied on if in the circumstances the application of customary law would have led to injustice. Where the elements of a tacit universal partnership have been established useful guidance may also be found in section 7 of the Matrimonial Causes Act (Chapter 5:13) in considering division of the union property."

So it is my considered view that having found the existence of a tacit universal partnership usage of the Matrimonial Causes Act (supra) as a mere guidance in the division and redistribution of assets between plaintiff and defendant should be the appropriate starting point.

I will only concentrate on the assets that plaintiff laid claims on. The plaintiff claims the following:-

a) No. 69 Duncan Road Suburbs

Stand 69 Duncan Road Suburbs is jointly owned by both parties in equal shares. Defendant told the court that he donated a half share in this property to the plaintiff. I find that having found that the parties lived together as husband and wife from 2002 to 2020, a period of 18 years while plaintiff was a supportive wife all that time, also taking into account that defendant did acknowledge in some way the relevance of plaintiff in that asset by donating a 50% share to her, I hold the view that, considering that there is the Northend property which plaintiff says defendant can remain with, I find that it will be just and equitable that plaintiff retains the matrimonial home.

I hold the view that the parties lived together as husband and wife, joined hands both in matrimony and in business for a common goal of improving their livelihood. Plaintiff was a wife, who worked in the businesses. (She says she worked as a business partner but defendant says she was employed, but to the court, the difference is the same, it is the joining of hands for the good of their family that matters in my view). Plaintiff says she supported every move in establishing those commercial enterprises and whether the support was moral or practical, it is neither here nor there in my view. I never heard the defendant in his testimony saying the plaintiff was an unsupportive wife, who neglected her duties as a wife as mother, as a partner

at work, even if she did not own the businesses but if she worked there it was in the spirit of seeing them prosper and entrench the family's future. She cannot be held to be an irrelevant party in so far as the acquisition of these assets is concerned. These are 2 people who met each other whilst very young, with nothing to their names, per plaintiff's testimony, they only started growing, and venturing into business as a family when plaintiff was also part of this successful matrix. She justifiably is entitled to a reasonable share of this matrimonial estate. Where practically possible. It is for these reasons that I believe because there are 2 immovable properties, 69 Duncan Road Suburbs and 4 Rudd Northend. I will award her 69 Duncan Road Suburbs and award 4 Rudd Northend to defendant because she already owns 50% of 69 Duncan Road Suburbs. Defendant seems to have appropriated 4 Rudd Northend to a trust, so it is only available to him as the settlor of the trust which I will deal with later on in this judgment. Again, I have not been favoured with the nature of the properties and their values, all I have is general knowledge that these properties are both in the low density area of Bulawayo, so it should be equitable that either party gets one property.

Slope 2 mine and Lion West mine plus the mining equipment there

I hold the view that the defendant's evidence that Slope 2 is on lease, was not sufficiently challenged by the plaintiff. The only mine that seems to be owned by defendant is Lion West mine. I would not disturb defendant's ownership and management of this mine because it seems to be his core business and source of livelihood. There is no need for this court to disturb that, he still has an obligation to look after the 4 children born of the union between the parties. Defendant will thus be allowed to keep both the owned mine and the leased mine. I cannot disturb a contract of lease between him and a third party by forcing into that arrangement the plaintiff, because there is freedom of contract. The other party may resile from it once plaintiff features, so it would a futile exercise. I will thus not interfere with defendant's ownership and mining of the 2 mines.

Defendant told the court that plaintiff already runs Gold Reef in Mawabeni and that he acquired if for plaintiff in case he had other women she could use it to earn income for herself. He said the property is currently in her control although she left it out of her claims.

Plaintiff is said to own Gold Reef Bar in Mawabeni. I hold the view that plaintiff already has a business of her own by design of the parties themselves. She can keep that

business as hers as pleaded by defendant although she did not lay a claim to it, it is in my view the only business available for distribution to her looking at the facts of this matter.

520 Habane Township in Esigodini

I hold the view that it will be equitable if plaintiff is awarded a 50% share in this stand, as it is an additional immovable property acquired during the subsistence of the union.

Motor vehicles

Plaintiff claimed 5 motor vehicles (including 2 trucks), a tractor and an excavator. Plaintiff led evidence that defendant bought her a Toyota Fortuner motor vehicle for her use. After she left the matrimonial home, defendant sold the car. He tendered an Agreement of Sale showing that it was sold for USD$65 000-00. Plaintiff altered her claim to have an alternative sounding in money, in order to retain the claim even after the vehicle was sold. I hold the view that this motor vehicle was bought for plaintiff, for her use and she is entitled to it beyond the dissolution of the partnership. However, because it is no longer there, I will award her the alternative value. Plaintiff should be paid a sum of USD$65 000 *in lieu* of the motor vehicle. I will not order that defendant finds an alternative Toyota Fortuner for plaintiff because defendant never offered such as an alternative in his defence. Neither did plaintiff ask for that. I will also award her one truck and a tractor so that she can also have a vehicle to use commercially plus a tractor. Defendant denied the existence of a BMW and a SUV.

Movables

Plaintiff also claimed the household goods in 69 Duncan Road Suburbs. I find that she has been using these as the occupiers of that home prior to problems between the parties, it will be just and equitable that she retain them for her continued use. After all she has the custody of the children so she needs to be in a well equipped home.

I will leave the rest of the assets to the defendant as he is obviously entitled to a lion's share of the estate, as he clearly played a bigger role in their acquisition.

There are 2 further issues I need to comment on in relation to the property dispute between the parties.

Filabusi Stand

I have not dealt with the claim that the stand be awarded to the children as they are already owners per the parties' testimony and they are not parties to the tacit universal partnership that I am dissolving.

The Trust

I have not paid any regard to the trust as a separate entity and I have decided to pierce the corporate veil where it is concerned for the following reasons:-

1) The trust was registered by defendant on 17 December 2020, soon after plaintiff left the matrimonial home.

2. Defendant is the settlor of the trust.

3. The current proceedings were commenced in March 2021 and defendant transferred 4 Rudd Northend to the trust in August 2024. Clearly, the trust was crafted as a vehicle to defeat plaintiff's claims. At the time the house was transferred to the trust defendant already knew that it was an issue before the courts. So clearly, the defendant cannot benefit from trying to defeat the ends of justice. In any event, he is the settlor, he chose to set up the trust and donate assets to it, he can still find his way to regain any assets from the trust if he so wishes. Even if it were to be argued that he cannot get the property back, I hold the view that he donated a property in August 2021 which he was already aware was part of this dispute as it had already commenced so that is his problem.

Superb Riches

Whilst defendant during the trial, tried to paint a picture that Superb Riches owned the mines and the mining equipment, I will pierce the corporate veil nonetheless and award plaintiff one truck for commercial use, together with one tractor. I am doing so because in para 5.3 of defendant's plea, he is the alter ego of Superb Riches per his own averments therein where he stated thus:-"……. The defendant runs mining operations at 2 sites, namely Lion West and Slope 2 mines ……" Clearly he is the man behind those mines whether under Superb Riches or not. So I will award plaintiff a truck and a tractor for her own commercial use. I will leave the rest of the trucks as defendant obviously needs them in the businesses. I did not give her any excavators as those are clearly for mining purposes and plaintiff does not own a mining business currently so I have not awarded her any. In fact defendant is the one who needs those.

Defendant shall make sure that plaintiff gets the truck and the tractor as he obviously controls Superb Riches, he is the alter ego of the company.

The other two women that defendant mentioned as being his two other wives

Defendant mentioned that he has 2 other wives in addition to plaintiff. They never sought to be joined in these proceedings, neither did defendant tell the court that either of them has a claim to any of the assets being dealt with in these proceedings. That is precisely the reason why I have dealt with assets as between plaintiff and defendant to the exclusion of those 2 mentioned women.

The issue of custody

Defendant confirmed that plaintiff can have custody of the minor children of the marriage. There are only 2 children who are still minors (1) Leon Thabisile Ndlovu male born on 4 July 2011. (2) Lee Thandolwethu Ndlovu male born on 16 November 2015.

The Issue of Maintenance

Both parties confirmed that there is an existing maintenance order by the Magistrates' Court regarding school fees and that defendant has been catering for the minor children's needs including even taking them to holidays. I hold the view that this cannot therefore be an issue.

I accordingly make the following order:-

1. The tacit universal partnership (customary law union) between the parties is hereby dissolved.
2. Custody of the 2 minor children born of the partnership, namely Thabisile Ndlovu male born 4 July 2011 and Lee Thandolwenkosi Ndlovu male born 16 November 2015 is awarded to plaintiff.

2 (a) Maintenance of the aforementioned minor children shall be dealt with by the Maintenance Court.

3. Plaintiff is awarded the following:-

a) No. 69 Duncan Road Suburbs, Bulawayo also known as Stand 29 Bulawayo South, Suburban Lands, Stand 374 Bulawayo Townhsip situate in the district of Bulawayo held under Deed of Transfer 1251/16.

b) Half the value of Stand 520 Habane Township Esigodini.

c) USD 65 000 to be paid by defendant to plaintiff being cash *in lieu* of a Toyota Fortuner motor vehicle Registration No. AFG 1118.

d) All household goods and effects at 69 Duncan Road Suburbs Bulawayo.

e) Gold Reef Sports Bar in Mawabeni.

f) FAW truck registration No. AEX 5882

g) 1 x tractor

4. Defendant shall retain the rest of the assets whether they are in his names, in the companies that he owns or in the trust including the following assets:-

a) 4 Rudd Road Northend Bulawayo a.k.a 1867 Bulawayo North A of Bulawayo Township lands in the district of Bulawayo.

b) Half the value of Stand 520 Habane Esigodini.

c) Slope 2 mine, and Lion West mine together with the mining equipment therein including vehicles excluding the FAW Truck registration No. AEX 5882 and 1 tractor.

d) Household furniture if any, in 4 Rudd Northend

(e)(i) Merc Benz registration AES 1567

(ii) Toyota Camry registration AES 1567

(iii) TATA truck registration No. AFE 7895

(iv) Toyota Hilux registration AAD 3412

(v) Toyota Corolla registration AEJ 7237

(vi) Toyota Run X registration No. AFH 3406

(vii) TATA truck registration AFE 7394

(viii) TATA truck registration AFJ 0574

(ix) TATA truck AFJ 0573

(x) All excavators

(xi) 1 tractor

Masiye-Moyo & Associates, plaintiff's legal practitioners
Nkomo & Sibanda, defendant's legal practitioners